now to be more fluid and less exacting. It would cover administrative inconvenience. This is what got Bhagat Singh, Sukhdev, and Rajguru in the end. Their trial for the killing of the assistant superintendent of police, John Saunders, and that of head constable, Chanan Singh, began in Lahore on 11th July 1929. Since Bhagat Singh and his co-defendants promptly resorted to hunger strikes the progress of the trial was slow and leisurely. In addition, there was what Dam refers to as the "'disorderly conduct' in the courtroom and demonstrations by the public outside" which also "led to some more adjournments" so that "By March 1930, only 234 of the 600 potential witnesses had been produced in the court." There was the fear now of "the trial likely to drag on indefinitely," and this is when Lord Irwin had little compunction exercising his own personal legislative powers. By his own edict he announced the Lahore Ordinance III of 1930, "arguing that 'disorderly conduct and revolutionary demonstrations, [had] to bring the administration of justice into contempt, [making] it impossible to count upon obtaining a conclusion by the normal methods of procedure within any calculable period.'"[21] A hunger strike is not, however, a 'disorderly conduct' by any stretch of imagination. But for Lord Irwin, as Dam explains, "public policy, as he understood it, required that the grave charges be 'thoroughly scrutinised and finally adjudicated upon with the least possible delay,'" and this is why he decreed that there be a three-judge tribunal instead of a regular court of law "investing them 'with powers to deal with wilful obstruction'" to try the accused in what was to become the second Lahore Conspiracy Case.

But even if this is so, was legislating by executive ordinance, so as to alter normal due process trial, the right way to go about it? As Dam himself continues to explain, 'The administrative character of the events mentioned here . . . involved nothing more than challenges in enforcing ordinary law and procedure. But in describing them as an "emergency" requiring special legislation, Lord Irwin brought the power to promulgate the ordinances ever closer to the legislature's power to enact primary legislation.' It may be more accurate to say that he in fact did, and did so illicitly! 'When contested, the Privy Council returned a verdict inscribing the governor-